

alleged a cause of action for IIED and the demurrer is sustained with leave to amend.

Separately, it is not clear what cause of action is alleged against Ghilarducci and when amending his complaint, Plaintiff shall clarify whether Ghilarducci is a defendant and if so, what claim is alleged against her. When amending, Plaintiff shall also remove the fifth cause of action for dangerous condition of public property and defendant Liberty Union High School per the parties' agreement.

7. 9:00 AM CASE NUMBER: C24-02650
CASE NAME: BRANDON B. VS. LIBERTY UNION HIGH SCHOOL DISTRICT
***HEARING ON MOTION IN RE: STRIKE ALLEGATIONS OF 1ST AMENDED COMPLAINT**
FILED BY: LIBERTY UNION HIGH SCHOOL DISTRICT
TENTATIVE RULING:

Defendants Liberty Union High School District, Linda Ghilarducci and Samantha Boeger's motion to strike portions of the first amended complaint is **granted with leave to amend**.

Defendants request to strike the allegations for punitive damages in paragraphs 111 and 113 and the prayers for punitive damages and attorney fees.

Plaintiff is seeking attorney fees against all Defendants. Defendants correctly point out that attorney fees are not normally allowed in a tort case and Plaintiff concedes the point. The motion to strike attorney fees is granted.

Plaintiff is seeking punitive damages against Ghilarducci and Boeger. In order to obtain punitive damages the facts alleged must show fraud, oppression or malice. (Civil Code §3294.) Subdivision (c) of the statute contains the following definitions: "(1) 'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [P] (2) 'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. [P] (3) 'Fraud' means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury."

"Nonintentional torts may also form the basis for punitive damages when the conduct constitutes conscious disregard of the rights or safety of others. [Citations.] Nonintentional conduct comes within the definition of malicious acts punishable by the assessment of punitive damages when a party intentionally performs an act from which he knows, or should know, it is highly probable that harm will result. [Citations.]" (*Peterson v. Superior Court* (1982) 31 Cal.3d 147, 158.)

As to Boeger, Plaintiff argues that allegations that Boeger lied to Brandon's parent about what happened during the attack are sufficient to support punitive damages. (FAC ¶35.) The claim that Boeger lied to Brandon's parent does not show why punitive damages should be awarded for Brandon's claims. The remaining facts alleged against Boeger do not rise to the level of fraud,

oppression or malice.

As to Ghilarducci, it is alleged she witnessed the fight and did nothing to stop it except blow her whistle. (FAC ¶135.) These facts are insufficient to rise to the level of fraud, oppression or malice. Further, there is no cause of action alleged against Ghilarducci.

Therefore, the motion to strike punitive damages is granted. Plaintiff is given leave to amend to include facts showing fraud, oppression or malice.

8. 9:00 AM CASE NUMBER: C24-03092
CASE NAME: PETER SCHICKER VS. JOSEPH SCHWALLER
***HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS**
FILED BY: SCHWALLER, JOSEPH WILBUR
TENTATIVE RULING:

Off-calendar based on notice of settlement on February 18, 2026.
Court will maintain the April 9, 2026 CMC at 8:30 a.m., Dept 32. If no dismissal is on file as of that date, parties must file updated CMC Statements 15 days in advance of April 9, to inform the court about the status of the settlement.

9. 9:00 AM CASE NUMBER: C24-03122
CASE NAME: RICHARD DAVIS VS. SCOTT EVEY
***HEARING ON MOTION IN RE: TRIAL PREFERENCE**
FILED BY: DAVIS, RICHARD PAUL
TENTATIVE RULING:

This suit, filed in November of 2024, involves a motor vehicle accident on October 10, 2024. Pending now before the Court is plaintiff, Richard Paul Davis' motion for trial preference. Plaintiff seeks a preferential trial date no later than 120 days from the hearing of this motion.

Code of Civil Procedure, § 36(a) states that the court "shall grant" trial preference to a party over the age of 70 if (1) that party "has a substantial interest in the action as a whole," and (2) the health of that party is such that a preference is necessary to prevent prejudicing his or her interest in the litigation.

Plaintiff argues that he is 82 years old and has diagnoses including a kidney disorder, esophageal reflux, hypertension, dyslipidemia, intrinsic asthma, low testosterone, dyspnea on exertion, a family history of heart disease, hypertension, bifascicular bundle branch block, kidney disease, gout, secondary hyperparathyroidism, and a depressive disorder. In support of the motion, plaintiff provides a declaration from counsel, H. Nathan James, Esq. Counsel states that surgery was initially scheduled for October 2025, but plaintiff "is unable to endure the surgery and the six months of rehabilitation thereafter, as he cannot afford to stop working for six months" without resolution of this matter. Counsel further states that plaintiff relies upon the income from his business and is being forced to continue working notwithstanding the pain and suffering resulting from such exertion.

Defendant opposes the motion based on the showing not evidencing any prejudice to plaintiff's "interest in the litigation" as opposed to general hardship incurred by any plaintiff in